

Court No. - 32

Case :- WRIT - C No. - 37751 of 2019

Petitioner :- Raj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Navneet Kumar Mishra, Arvind Kumar Rai

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

Sri Mahboob Ahmad, learned counsel appearing on behalf of respondent-4 prays for and is granted 10 days' time to seek the instruction in the matter.

Put up as fresh on 5.12.2019.

Till then no coercive action shall be taken against the petitioner.

Order Date :- 22.11.2019

Rahul Dwivedi/-

Court No. - 32

Case :- WRIT - C No. - 37751 of 2019

Petitioner :- Raj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Navneet Kumar
Mishra, Arvind Kumar Rai

Counsel for Respondent :- C.S.C., Mahboob
Ahmad

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

This writ petition has been filed, inter alia, for the following relief:

"[i]. Issue a writ, order or direction in the nature of Certiorari quashing the impugned Recovery Certificates dated 13.09.2019 bearing amount of Rupees 159915/-, 26.06.2019 bearing amount of Rs. 475170/- and 20.08.2019 bearing amount of Rupees 475170/- and others charges issued by the respondent No. 3 [Contained in Annexure No. 1 to this writ petition]."

Heard the learned counsel for the petitioner and Mr. Mahboob Ahmad, learned counsel for the electricity department and perused the record.

A perusal of the record shows that two recovery citations have been issued against the petitioner.

The grievance of the petitioner is two fold. Firstly, no opportunity whatsoever has been given to the petitioner and straightaway demand of Rs. 4,75,170/- has been raised against him as such the demand raised is per se illegal and cannot be sustained. Secondly, the petitioner has disputed the correctness of the electricity bill of Rs. 1,59,915/- raised against him.

So far as the first grievance of the petitioner regarding the demand of Rs. 4,75,170/- is concerned, Mr. Mahboob Ahmad, learned counsel for the Electricity Department has submitted that an inspection was made of the premises in question and the petitioner was found committing theft of electricity, as such, provisional assessment of Rs. 4,75,170/- was made against the petitioner after serving a notice, as such, it cannot be said that no opportunity was given to the petitioner.

Learned counsel for the petitioner has strongly refuted the averments made by Sri Mahboob Ahmad, learned counsel for the Electricity Department and stated that he has not received any notice regarding the provisional assessment. He further submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, so far as the first grievance of the petitioner is concerned, we issue a direction to the petitioner to appear on 19.12.2019 at 11.00 A.M. before the Respondent No. 4, Executive Engineer after depositing Rs. 1,00,000/- (rupees one lac only) along with his objection with respect to provisional assessment of Rs. 4,75,170/- and adduce his evidence, if any, in support of his contention. The Respondent No. 4, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks

thereafter.

For a period of seven weeks from today or till the disposal of the objection/application, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/application, as indicated herein above, the benefit of this order shall cease automatically.

In case, the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

If the petitioner makes a deposit of Rs. 1,00,000/- (rupees one lac only) with the electricity department on or before 19.12.2019, his electricity connection shall be restored forthwith.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

So far as the second grievance regarding the correctness of the electricity bill of Rs. 1,59,915/- are concerned, it is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005. In case, the petitioner approaches the appropriate authority/Executive Engineer for redressal of his grievance with respect to disputed electricity bills/dues within four weeks from today, his application may be considered and decided by the said authority in accordance with law within two weeks thereafter by a speaking

order after giving opportunity of hearing to the petitioner.

For a period of eight weeks or till the application filed under Clause 6.5 is decided by the authority concerned, no coercive action shall be taken against the petitioner.

With the above observations, the writ petition stands finally disposed of.

Order Date :- 5.12.2019

vinay